

CLOUD INFRASTRUCTURE SERVICES RENEWAL AGREEMENT

Agreement No. CVS-2022-0441-R1 | Renewal Term: April 1, 2025 – March 31, 2027

RECITALS

WHEREAS, Nexacore Inc. ("Customer") and VendorB Corp. ("Provider") entered into that certain Cloud Infrastructure Services Agreement dated March 15, 2022 ("Original Agreement"), Agreement No. CVS-2022-0441, for the provision of cloud infrastructure and managed services;

WHEREAS, the Original Agreement is scheduled to expire on March 31, 2025, and both parties have performed their respective obligations thereunder in a satisfactory manner and desire to continue their business relationship;

WHEREAS, the parties desire to renew the Original Agreement for a further period on the modified terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. RENEWAL OF AGREEMENT

Customer and Provider hereby renew the Original Agreement for a period of twenty-four (24) months commencing April 1, 2025 and expiring March 31, 2027 (the "Renewal Term"). Except as expressly modified by this Renewal Agreement, all terms and conditions of the Original Agreement shall remain in full force and effect during the Renewal Term and are incorporated herein by reference.

2. MODIFIED SERVICE TERMS

2.1 Effective April 1, 2025, the Annual Service Fees shall be increased by eight percent (8%) above the fees applicable during the final year of the Original Agreement, as set forth in the table below. Provider shall invoice Customer monthly in equal installments of the applicable annual fee divided by twelve (12).

Service Tier	2022-2025 Annual Fee	2025-2027 Annual Fee	Increase
Enterprise	\$580,000	\$626,400	8.0%
Professional	\$310,000	\$334,800	8.0%
Starter	\$95,000	\$102,600	8.0%

2.2 Provider shall provide Customer with at least ninety (90) days prior written notice before implementing any additional pricing changes during the Renewal Term. No fee

increases beyond those set forth in Section 2.1 shall take effect without Customer's prior written consent.

3. SERVICE LEVEL COMMITMENTS

3.1 During the Renewal Term, Provider shall maintain the following service levels. Failure to meet the applicable service level commitment shall entitle Customer to service credits as specified, which shall be Customer's sole and exclusive remedy for such failure.

Service Tier	Uptime Guarantee	Incident Response SLA	Monthly Credit (Non-Compliance)
Platinum	99.99%	15 minutes	30% of monthly fee
Gold	99.95%	1 hour	20% of monthly fee
Silver	99.90%	4 hours	10% of monthly fee
Bronze	99.50%	8 hours	5% of monthly fee

3.2 Uptime is measured on a calendar-month basis excluding scheduled maintenance windows of which Provider has given at least seventy-two (72) hours advance notice. Provider shall publish a maintenance calendar at least thirty (30) days in advance of each calendar month and shall make reasonable efforts to schedule maintenance during off-peak hours.

4. BILLING AND PAYMENT

Invoices are due Net-30 from date of receipt. Customer's preferred payment method is ACH electronic transfer; Provider shall provide banking instructions upon request. Amounts outstanding beyond thirty (30) days from the due date shall accrue interest at one and one-half percent (1.5%) per month. Customer shall notify Provider in writing of any invoice dispute within fifteen (15) days of receipt, and the parties shall work in good faith to resolve any such dispute within thirty (30) days.

5. MODIFICATIONS TO PRIOR AGREEMENT

The following provisions of the Original Agreement are hereby modified for the Renewal Term:

- (a) Security Exhibit: Exhibit C (Security Requirements) is replaced in its entirety with the updated Exhibit C-1 attached hereto, incorporating SOC 2 Type II, ISO 27001, and PCI-DSS compliance obligations;
- (b) Escalation Procedure: Section 12.4 (Escalation) is amended to reduce initial response time from 4 hours to 2 hours for Priority 1 incidents, and to add a C-suite escalation path for incidents unresolved after 8 hours;
- (c) Backup Retention: Section 8.2 (Data Backup) is amended to extend backup retention from 30 days to 90 days for all Customer data, with no additional fee.

6. REPRESENTATIONS AND WARRANTIES

Each party represents and warrants that: (a) it has the full legal power and authority to enter into this Renewal Agreement; (b) the execution hereof does not conflict with any

obligation to a third party; and (c) it will perform its obligations in compliance with all applicable laws and regulations. Provider additionally represents that it has not experienced any material security incidents affecting customer data in the twelve (12) months preceding execution of this Renewal Agreement.

7. GENERAL PROVISIONS

This Renewal Agreement shall be governed by the laws of the State of California. All other general provisions of the Original Agreement, including but not limited to confidentiality, indemnification, limitation of liability, dispute resolution, and assignment restrictions, shall continue to apply during the Renewal Term unchanged. This Renewal Agreement, together with the Original Agreement and its exhibits as modified herein, constitutes the entire agreement of the parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, or agreements relating to the renewal of the Original Agreement.

FOR MERKLE INC. ("Customer")

Signature: _____

Name: _____

Title: _____

Date: _____

FOR CLOUDVAULT CORP. ("Provider")

Signature: _____

Name: _____

Title: _____

Date: _____

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